

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

-----X
LEONARD LIEBERT and CHESTER TAYLOR,

Plaintiff designates
New York County
the place of trial

Plaintiff(s),

-against-

The basis of venue is
location of occurrence

**CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER CRISTOF DERCO (Tax ID 946917) and
NEW YORK CITY POLICE OFFICER DANIEL
CALLINAN (Tax ID 945542),**

SUMMONS

Plaintiffs reside in
Bronx County

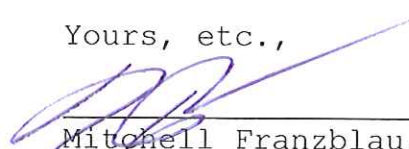
Defendant(s).

-----X
To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 7, 2011

Yours, etc.,



Mitchell Franzblau, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

CITY OF NEW YORK

100 Church Street
New York, New York 10007

NEW YORK CITY POLICE

OFFICER CRISTOF DERCO (Tax ID 946917)

23rd Precinct, 164 East 102nd Street
New York, New York

NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)

23rd Precinct, 164 East 102nd Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
LEONARD LIEBERT and CHESTER TAYLOR,

VERIFIED COMPLAINT

Plaintiff(s),

Index No:

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER CHRISTOF DERCO (Tax ID 946917)
and NEW YORK CITY POLICE OFFICER DANIEL
CALLINAN (Tax ID 945542),**

Defendant(s).

-----X

Plaintiffs, by and through their attorneys, **BELOVIN &
FRANZBLAU, LLP**, as and for a verified complaint, respectfully
allege as follows:

1. That all the times hereinafter mentioned, plaintiffs
were, and still are, residents of the City and State of New York,
County of Bronx.

2. At all the times herein, the defendant, **CITY OF NEW YORK**,
was, and still is a duly licensed Municipal Corporation authorized
to transact business in the City of New York, County of New York.

3. Upon information and belief, the defendant, **CITY OF NEW
YORK**, employed **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID
946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID
945542)**, who were herein duly employed and acting New York City
Police Officers (or other ranking officers) of the City of New

York, County of New York, State of New York and upon information and belief, the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, were and still are, at all times herein mentioned, residents of the City and State of New York, County of New York.

4. Upon information and belief, that all times herein, the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about January 16, 2011 near and about 112th Street and Third Avenue, City and State of New York, County of New York, although the plaintiffs were lawfully and properly at said location, their car was improperly searched without justification and thereafter their car was improperly pulled over without justification, they were forcibly, violently and unlawfully, stopped, frisked, searched in a demeaning manner and assaulted and battered in front of the public, threatened and illegally placed under arrest and imprisoned and thereafter the plaintiffs were assaulted and battered in the 23rd Precinct by the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL**

CALLINAN (Tax ID 945542), working for and on behalf of **THE CITY OF NEW YORK**.

8. Upon information and belief the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, unlawfully accused the plaintiffs of crimes and violations and the defendants became abusive toward the plaintiffs without any justification and said accusations were completely false and plaintiffs were unlawfully placed under arrest.

9. Upon information and belief, the plaintiffs were taken to the New York City Police Department 23rd Precinct and thereafter to Central Booking, New York, New York and were held, under arrest, and imprisoned from approximately January 16, 2011 at approximately 9:30 p.m. until January 17, 2011 at 6:30 p.m.

10. Upon information and belief, during the time the plaintiffs were unlawfully held at the aforesaid locations, plaintiffs were otherwise forced to undergo great emotional and mental anguish and physical harm, and loss of liberty and freedom and were kept and imprisoned in various cells and handcuffed.

11. Upon information and belief, that on January 17, 2011 at 6:30 p.m., the plaintiffs were released and advised that they were free to go.

12. Upon information and belief, no criminal charges were pressed against the plaintiffs in connection with, or in support of the arrest, search, seizure and imprisonment to which plaintiffs were subject as set forth herein.

13. Prior to the commencement of this action, on the 10th day of February, 2011, a Notice of Claim, for each plaintiff, was duly served herein on the defendant. Thereafter, on the 8th day of September, 2011, the City of New York, conducted 50-H hearings of both plaintiffs pursuant to the General Municipal Law. That more than thirty days have expired since the filing of the Notice of Claims, and the defendants have failed and neglected to adjust the claims. This action is timely brought.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT**

14. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "13", above as if fully set forth herein.

15. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **LEONARD LIEBERT**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their

employees, defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), approached the plaintiff, detained him, searched him and began to assault and batter the plaintiff. This search was conducted in a violent and abusive manner during the course of which defendant probed and shoved plaintiff, cuffed and verbally and assaulted, battered and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

16. Upon information and belief, after searching plaintiff's person, as above described, which search did not reveal any incriminatory or dangerous articles defendant placed the plaintiff in handcuffs and compelled the plaintiff to accompany them to and detained at the following locations: the 23rd Precinct and Central Booking, New York, New York.

17. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately January 16, 2011 at 9:30 p.m. until January 17, 2011 at 6:30 p.m. Said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions of the New York City

Police Department and their employees and said actions of defendants were done intentionally and with malice.

18. Upon information and belief, no criminal charges were pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was subjected as set forth herein were, or will be, dismissed and were unjustified and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

19. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **LEONARD LIEBERT's** movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

20. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **LEONARD LIEBERT**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER**

DANIEL CALLINAN (Tax ID 945542), and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT**

21. Plaintiffs repeat, reiterate and reallege each and every allegation number "1" through "20" above, as if fully set forth herein.

22. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **LEONARD LIEBERT**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did falsely arrest the plaintiff.

23. Upon information and belief, at all times herein, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold his against his will.

24. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **LEONARD LIEBERT's**, movement was restricted and confined.

25. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

26. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

27. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

28. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **LEONARD LIEBERT**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**,

and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT**

29. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "28", above as if fully set forth hereinafter.

30. Upon information and belief, the defendant, **CITY OF NEW YORK**, owed a duty to the general public to sufficiently train andDecember 6, 2011 educate their police officers.

31. Upon information and belief, the aforesaid police officers, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, **CITY OF NEW YORK**, was further negligent in hiring and retaining **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

32. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and the defendants were otherwise negligent.

33. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK's** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

34. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, the plaintiff, **LEONARD LIEBERT**, did suffer shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty,

loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF
NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID
946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID
945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT

35. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "34", above as if fully set forth hereinafter.

36. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

37. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, all secured by the Constitution of the

United State and 42 United Stated Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

38. Upon information and belief, that all the actions set forth herein by various officers of the New York City Police Department, New York County, constitute a continuing pattern of harassment toward plaintiff, demanding the compensation of significant damages and punitive damages, as plaintiff's life has been extremely disrupted by this pattern of abuse.

39. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and said misconduct and

official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

40. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated by the substantial and reoccurring amount of 42 USC § 1983 claims filed against the **CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated and documented on several occasions by both the New York City Police and other investigations.

41. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

42. Plaintiff hereby demands reasonable attorneys fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT

43. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "42", above as if fully set forth hereinafter.

44. Upon information and belief, on or about January 16, 2011, the defendant, **THE CITY OF NEW YORK**, by their employees, the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, falsely and maliciously accused the plaintiff, **LEONARD LIEBERT**, of crimes and violations.

45. Upon information and belief, said charges were brought against the plaintiff, **LEONARD LIEBERT**, with malice.

46. Upon information and belief, there was no probable cause for bringing said charges against the plaintiff and said charges were false.

47. Upon information and belief, all charges were dismissed against the plaintiff.

48. Upon information and belief, the above actions of the defendants, **THE CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER**

DANIEL CALLINAN (Tax ID 945542), constitute malicious prosecution by the defendants, all against the plaintiff, **LEONARD LIEBERT**.

49. By reason of the foregoing **MALICIOUS PROSECUTION** the plaintiff, **LEONARD LIEBERT**, sustained personal, physical, mental and emotional injuries, loss of esteem, shock, humiliation, embarrassment, loss of liberty, loss of time, loss of enjoyment of life and was otherwise damaged, all in a sum exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT

50. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "49", above as if fully set forth hereinafter.

51. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **LEONARD LIEBERT**, was lawfully and properly at said location, and again at the 23rd Precinct, City, State and County of New York, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO**

(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), civilly assaulted the plaintiff, LEONARD LIEBERT.

52. Upon information and belief, at all times herein, the defendant, CITY OF NEW YORK, and the defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), placed the plaintiff, LEONARD LIEBERT, in imminent fear of violent contact.

53. Upon information and belief, the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), acts were intentional and made with malice all against the plaintiff, LEONARD LIEBERT.

54. Upon information and belief, at all times herein, the plaintiff was aware of the defendants actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

55. Upon information and belief, by reason of CIVIL ASSAULT of the plaintiff, LEONARD LIEBERT, by the aforesaid defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), LEONARD LIEBERT, sustained serious and severe personal injury, physical, mental and emotional injuries and plaintiff

demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands punitive damages against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT**

56. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "55", above as if fully set forth hereinafter.

57. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **LEONARD LIEBERT**, was lawfully and properly at said location and again at the 23rd Precinct, City, State and County of New York, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, civilly battered the plaintiff, **LEONARD LIEBERT**, and, in addition, to beating kicking and striking the plaintiff, the defendants also tazered plaintiff, **LEONARD LIEBERT**.

58. That at the aforesaid time and place the defendant, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did batter the plaintiff by subjecting the plaintiff, **LEONARD LIEBERT**, to offensive bodily conduct.

59. Upon information and belief, the plaintiff, **LEONARD LIEBERT**, never consented to said contact, nor was said contact justified or privileged.

60. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

61. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **LEONARD LIEBERT**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, the plaintiff, **LEONARD LIEBERT**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE**

OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542).

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, LEONARD LIEBERT

62. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "61", above as if fully set forth hereinafter.

63. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **LEONARD LIEBERT**, was lawfully and properly at said location, the defendants, **CITY OF NEW YORK**, by and through their employee, defendant, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did intentionally inflict emotional harm upon the plaintiff, **LEONARD LIEBERT** and/or acted with a complete disregard of the substantial probability of causing severe emotional distress to plaintiff, **LEONARD LIEBERT**.

64. Upon information and belief, that at the aforesaid time and place the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE**

OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), did batter and assault the plaintiff in the presence of the public in an effort to humiliate and otherwise intimidate and embarrass plaintiff by subjecting the plaintiff, **LEONARD LIEBERT**, to offensive bodily conduct.

65. Upon information and belief, the plaintiff, **LEONARD LIEBERT**, never consented to said contact, nor was said contact justified or privileged.

66. Upon information and belief, the aforesaid intentional infliction of emotional harm by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of same.

67. Upon information and belief, the actions performed by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, including shooting plaintiff with a tazor, were so shocking and outrageous that they exceeded all reasonable bounds of decency and constituted extreme and outrageous conduct.

68. Upon information and belief, there was a causal connection between the outrageous conduct described herein by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF**

DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), and plaintiff, LEONARD LIEBERT's severe emotional distress and injuries.

69. Upon information and belief, the above actions conducted by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), caused severe emotional distress to plaintiff.

70. Upon information and belief, the above actions of defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), were done with the desire to cause such severe stress to plaintiff under circumstances known to defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), which made it substantially certain that the result would follow and acted recklessly with utter disregard of the consequences that might follow.

71. Upon information and belief, by reason of the **INTENTIONAL INFLICTION OF EMOTIONAL HARM** of the plaintiff, LEONARD LIEBERT, by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER

DANIEL CALLINAN (Tax ID 945542), the plaintiff, LEONARD LIEBERT, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542).

AS AND FOR A NINTH CAUSE OF ACTION AGAINST THE DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

72. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "71", above as if fully set forth herein.

73. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, CHESTER TAYLOR, was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), approached the plaintiff, detained him, search him and began to assault and batter the plaintiff. This search was

conducted in a violent and abusive manner during the course of which defendant probed and shoved plaintiff, cuffed and verbally and assaulted, battered and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

74. Upon information and belief, after searching plaintiff's person, as above described, which search did not reveal any incriminatory or dangerous articles defendant placed the plaintiff in handcuffs and compelled the plaintiff to accompany them to and detained at the following locations: the 23rd Precinct and Central Booking, New York, New York.

75. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately January 16, 2011 at 9:30 p.m. until January 17, 2011 at 6:30 p.m. Said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

76. Upon information and belief, no criminal charges were pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was

subjected as set forth herein were, or will be, dismissed and were unjustified and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

77. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **CHESTER TAYLOR**'s movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

78. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **CHESTER TAYLOR**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

79. Plaintiffs repeat, reiterate and reallege each and every allegation number "1" through "78" above, as if fully set forth herein.

80. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **CHESTER TAYLOR**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did falsely arrest the plaintiff.

81. Upon information and belief, at all times herein, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold his against his will.

82. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **CHESTER TAYLOR's**, movement was restricted and confined.

83. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

84. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

85. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

86. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **CHESTER TAYLOR**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**,

and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO
(Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN
(Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR**

87. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "86", above as if fully set forth hereinafter.

88. Upon information and belief, the defendant, **CITY OF NEW YORK**, owed a duty to the general public to sufficiently train and educate their police officers.

89. Upon information and belief, the aforesaid police officers, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, **CITY OF NEW YORK**, was further negligent in hiring and retaining **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

90. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and the defendants were otherwise negligent.

91. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

92. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, the plaintiff, **CHESTER TAYLOR**, did suffer shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty,

loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF
NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID
946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID
945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

93. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "92", above as if fully set forth hereinafter.

94. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

95. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, all secured by the Constitution of the

United State and 42 United Stated Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

96. Upon information and belief, that all the actions set forth herein by various officers of the New York City Police Department, New York County, constitute a continuing pattern of harassment toward plaintiff, demanding the compensation of significant damages and punitive damages, as plaintiff's life has been extremely disrupted by this pattern of abuse.

97. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and said misconduct and

official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

98. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated by the substantial and reoccurring amount of 42 USC § 1983 claims filed against the **CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated and documented on several occasions by both the New York City Police and other investigations.

99. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

100. Plaintiff hereby demands reasonable attorneys fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

101. Plaintiffs repeat, reiterate and realleges each and every allegation numbered "1" through "100", above as if fully set forth hereinafter.

102. Upon information and belief, on or about August 17, 2010, the defendant, **THE CITY OF NEW YORK**, by their employees, the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, falsely and maliciously accused the plaintiff, **CHESTER TAYLOR**, of crimes and violations.

103. Upon information and belief, said charges were bought against the plaintiff, **CHESTER TAYLOR**, with malice.

104. Upon information and belief, there was no probable cause for bringing said charges against the plaintiff and said charges were false.

105. Upon information and belief, all charges were dismissed against the plaintiff.

106. Upon information and belief, the above actions of the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER**

DANIEL CALLINAN (Tax ID 945542), constitute malicious prosecution by the defendants, all against the plaintiff, **CHESTER TAYLOR**.

107. By reason of the foregoing **MALICIOUS PROSECUTION** the plaintiff, **CHESTER TAYLOR**, sustained personal, physical, mental and emotional injuries, loss of esteem, shock, humiliation, embarrassment, loss of liberty, loss of time, loss of enjoyment of life and was otherwise damaged, all in a sum exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

108. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "107", above as if fully set forth hereinafter.

109. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **CHESTER TAYLOR**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, civilly assaulted the plaintiff, **CHESTER TAYLOR**.

110. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, and the defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, placed the plaintiff, **CHESTER TAYLOR**, in imminent fear of violent contact.

111. Upon information and belief, the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, acts were intentional and made with malice all against the plaintiff, **CHESTER TAYLOR**.

112. Upon information and belief, at all times herein, the plaintiff was aware of the defendants actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

113. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **CHESTER TAYLOR**, by the aforesaid defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, **CHESTER TAYLOR**, sustained serious and severe personal injury, physical, mental and emotional injuries and plaintiff demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands

punitive damages against NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542).

AS AND FOR A FIFTEENTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

114. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "113", above as if fully set forth hereinafter.

115. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, CHESTER TAYLOR, was lawfully and properly at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), civilly battered the plaintiff, CHESTER TAYLOR.

116. That at the aforesaid time and place the defendant, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), did batter the plaintiff by subjecting the plaintiff, CHESTER TAYLOR, to offensive bodily conduct.

117. Upon information and belief, the plaintiff, **CHESTER TAYLOR**, never consented to said contact, nor was said contact justified or privileged.

118. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

119. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **CHESTER TAYLOR**, by the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO** (Tax ID 946917) and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN** (Tax ID 945542), the plaintiff, **CHESTER TAYLOR**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO** (Tax ID 946917) and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN** (Tax ID 945542).

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542) ON BEHALF OF PLAINTIFF, CHESTER TAYLOR

120. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "119", above as if fully set forth hereinafter.

121. Upon information and belief, on or about January 16, 2011 at approximately 9:30 p.m. near and about 112th Street and Third Avenue, City and State of New York, County of New York, while the plaintiff, **CHESTER TAYLOR**, was lawfully and properly outside of said premises, the defendants, **CITY OF NEW YORK**, by and through their employee, defendant, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did intentionally inflict emotional harm upon the plaintiff, **CHESTER TAYLOR** and/or acted with a complete disregard of the substantial probability of causing severe emotional distress to plaintiff, **CHESTER TAYLOR**.

122. Upon information and belief, that at the aforesaid time and place the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, did batter and assault the plaintiff in the presence of the public in an effort to humiliate and otherwise intimidate and embarrass plaintiff by subjecting the plaintiff, **CHESTER TAYLOR**, to offensive bodily conduct.

123. Upon information and belief, the plaintiff, **CHESTER TAYLOR**, never consented to said contact, nor was said contact justified or privileged.

124. Upon information and belief, the aforesaid intentional infliction of emotional harm by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of same.

125. Upon information and belief, the actions performed by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, were so shocking and outrageous that they exceeded all reasonable bounds of decency and constituted extreme and outrageous conduct.

126. Upon information and belief, there was a causal connection between the outrageous conduct described herein by defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, and plaintiff, **CHESTER TAYLOR's** severe emotional distress and injuries.

127. Upon information and belief, the above actions conducted by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, caused severe emotional distress to plaintiff.

128. Upon information and belief, the above actions of defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), were done with the desire to cause such severe stress to plaintiff under circumstances known to defendants, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), which made it substantially certain that the result would follow and acted recklessly with utter disregard of the consequences that might follow.

129. Upon information and belief, by reason of the INTENTIONAL INFLICTION OF EMOTIONAL HARM of the plaintiff, CHESTER TAYLOR, by the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542), the plaintiff, CHESTER TAYLOR, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542).

WHEREFORE, plaintiff demands judgement against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts and the Ninth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Tenth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Eleventh Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Twelfth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on Thirteenth Cause of Action and in an amount exceeding the jurisdictional limits of all

lower Courts on the Fourteenth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts of the Fifteenth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixteenth Cause of Action plus punitive damages against defendants, **NEW YORK CITY POLICE OFFICER CHRISTOF DERCO (Tax ID 946917)** and **NEW YORK CITY POLICE OFFICER DANIEL CALLINAN (Tax ID 945542)**, in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
 Deember 7, 2011

Yours, etc.



Mitchell Franzblau, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

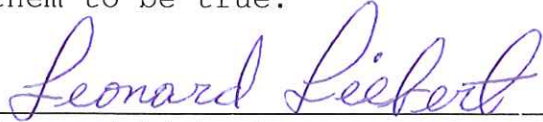
VERIFICATION

State of New York)

ss:

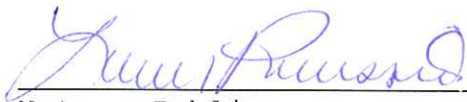
County of Bronx)

Leonard Liebert, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above **VERIFIED COMPLAINT** and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.



Leonard Liebert

Sworn to before me on
December 7, 2011



Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in Bronx County
Commission Expires September 13, 2013

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
=====

LEONARD LIEBERT and CHESTER TAYLOR,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER CRISTOF DERCO (Tax ID 946917) and NEW YORK CITY POLICE
OFFICER DANIEL CALLINAN (Tax ID 945542),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin & Franzblau, L.L.P.
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, NY 10467
718-655-2900

TO: